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Case Number: 25PSCV04519 Hearing Date: July 29, 2026 Dept: G

Defendant Nivera Enterprise Inc.'s Demurrer
to Plaintiffs Joy Albayati, Kasey Albayati, and Nathan Albayati's Amended Complaint

Respondent:

Plaintiffs Joy Albayati, Kasey Albayati, and Nathan Albayati

Defendant

Nivera Enterprise Inc.'s Motion to Strike Portions of Plaintiffs Joy Albayati,
Kasey Albayati, and Nathan Albayati's Amended Complaint

Respondent:

Plaintiffs Joy Albayati, Kasey Albayati, and Nathan Albayati

TENTATIVE

RULING

Defendant

Nivera Enterprise Inc.'s Demurrer to Plaintiffs Joy Albayati, Kasey Albayati, and
Nathan Albayati's Amended Complaint is SUSTAINED WITH TWENTY (20) DAYS LEAVE TO
AMEND.

Defendant

Nivera Enterprise Inc.'s Motion to Strike Portions of Plaintiffs Joy Albayati,
Kasey Albayati, and Nathan Albayati's Amended Complaint is deemed MOOT.

BACKGROUND

This

is an elder abuse and wrongful death action.

On May 31, 2025, defendant Shreeta Yadav (Yadav), an executive and the owner of defendant Divine Manor Care, Inc. (Divine Manor), allegedly suggested to plaintiff Joy Albayati that Divine Manor could provide care to her husband, nonparty Lance Albayati, a senior with Parkinson's disease and dementia. That same day, Divine Manor allegedly admitted Lance Albayati to its care, and a doctor provided by defendant Nivera Enterprise, Inc. dba San Gabriel Hospice (SGH) conducted a remote examination. Yadav, Divine Manor, and SGH allegedly administered strong sedatives to Lance Albayati multiple times per day, against the wishes of his family, and his condition deteriorated. Sometime between June 13 and 14, 2025, Lance Albayati passed away, and soon thereafter, his family noticed that Divine Manor allegedly altered his medical administration record to remove references to improperly administered medications. Lance Albayati is survived by Joy Albayati and his sons, plaintiffs Kasey Albayati and Nathan Albayati.

On December 12, 2025, Joy Albayati, Kasey Albayati, and Nathan Albayati (collectively, the Albayatis) filed the Complaint. On May 26, 2026, the Albayatis filed the operative Amended Complaint, alleging causes of action for (1) violations of the Elder Abuse and Dependent Adult Civil Protection Act, (2) wrongful death/negligence, (3) survival/negligence, (4) fraudulent misrepresentation, (5) fraudulent concealment, and (6) negligent misrepresentation.

On July 2, 2026, SGH filed this demurrer with motion to strike to amended complaint. On July 16, 2026, the Albayatis filed the oppositions, and on July 22, 2026, SGH filed the replies.

This case is set for a case management conference and a hearing on the demurrer with motion to strike on July 29, 2026.

DEMURRER

SGH

demurs to the first three causes of action.

For the following reasons, the demurrer is SUSTAINED WITH LEAVE TO AMEND.

Legal

Standard

A

party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.”

(Code Civ. Proc., § 430.10, subd. (e).)

A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th

740, 747.) When considering demurrers,

courts accept all well pleaded facts as true.

(Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068,

1078.) The court should also draw

reasonable inferences in favor of the pleading subject to demurrer. (Kruss v. Booth (2010) 185 Cal.App.4th

699, 727.) The court should liberally

construe the complaint to bring substantial justice between the parties. (Addiego v. Hill (1965) 238 Cal.App.2d

842, 845.) To sustain a demurrer,

defects must be apparent on the face of the pleading or via proper judicial

notice. (Donabedian v. Mercury Ins.

Co. (2004) 116 Cal.App.4th 968, 994; SKF Farms v. Super. Ct. (1984)

153 Cal.App.3d 902, 905, stating, “A demurrer tests the pleadings alone and not

the evidence or other extrinsic matters.

Therefore, it lies only where the defects appear on the face of the

pleading or are judicially noticed.”; Hahn, supra, at 747,

stating, “The only issue involved in a demurrer hearing is whether the

complaint, as it stands, unconnected with extraneous matters, states a cause of

action.”)

Discussion

First

Cause of Action: Violations of the Elder Abuse and Dependent Adult Civil

Protection Act

SGH

argues that the Amended Complaint fails to allege facts sufficient to support a

cause of action for violations of the Elder Abuse and Dependent Adult Civil

Protection Act. The court agrees.

A

violation of the Elder Abuse and Dependent Adult Civil Protection Act may occur

in cases involving physical abuse and/or neglect. (Welf. & Inst. Code, § 15610.07, subd.

(a)(1).) The court's analysis on

demurrer requires that it examine both prongs.

By

Physical Abuse

To

plead elder abuse by physical abuse, plaintiff must allege facts establishing that: (1) the defendant engaged in the physical abuse of the elder; (2) that the elder was harmed; and (3) that the abuse was a substantial factor in causing the harm. (CACI No. 3106, citing Welf. & Inst. Code, §§ 15610.07; 15610.27; 15610.63.) “Physical abuse” includes assault, battery, unreasonable physical restraint, prolonged or continual deprivation of food or water, sexual assault, and certain forms of physical or chemical restraint. (Welf. & Inst. Code, § 15610.63, subds. (a)–(f).) Regarding chemical restraint specifically, physical abuse includes using the chemical restraint (1) for punishment; (2) for a period beyond that for which the medication was ordered pursuant to the instructions of a physician who is providing medical care to the elder at the time the instructions are given, or (3) for any purpose not authorized by the physician. (See Welf. & Inst. Code, § 15610.63, subd. (f).)

For

the second and third elements, the Albayatis allege that the administration of excessive sedatives physically restrained Lance Albayati, putting him at a higher risk of aspiration, and contributing to his death. (AC, ¶¶ 4–5, 64, 81, 97, 108, 110, 116–117, 126, 139.)

For

the first element, the Amended Complaint alleges that SGH “authorized medications [and] managed . . . Divine Manor and Yadav’s administration of sedatives. . . .” (AC, ¶ 59.) Although the Amended Complaint alleges that “Defendants” generally “began administering new medications designed to keep Lance [Albayati] sedated at all times,” there is no allegation that SGH administered the medications as punishment, exceeding the scope of a physician’s instructions, or for a purpose not authorized by a physician. (AC, ¶ 64; see Welf. & Inst. Code, § 15610.63, subd. (f).) In fact, the Amended Complaint instead alleges that Divine Manor administered sedatives against SGH’s instructions. (See AC, ¶ 162.) Thus, the Amended Complaint fails to state sufficient facts for each element of elder abuse by physical

abuse as to SGH.

By

Neglect

To

plead elder abuse by neglect, plaintiff must allege facts establishing that the defendant: (1) had responsibility for meeting the basic needs of the elder or dependent adult, such as nutrition, hydration, hygiene, or medical care; (2) knew of conditions that made the elder or dependent adult unable to provide for their own basic needs; and (3) engaged in the neglect of the elder. (*Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 406–407.) The first element requires “a robust caretaking or custodial relationship—that is, a relationship where a certain party has assumed a significant measure of responsibility for attending to one or more of an elder’s basic needs.” (*Winn v. Pioneer Medical Group* (2016) 63 Cal.3d 148, 158.) For the third element, “neglect” includes failure to assist in personal hygiene, failure to assist in the provision of food or clothing, failure to provide medical care for physical and mental health needs, failure to protect from health and safety hazards, failure to prevent malnutrition or dehydration. (Welf. & Inst. Code, § 15610.57, subd. (b)(1)–(b)(4).) The plaintiff must also allege: (4) “that the neglect caused the elder . . . to suffer physical harm, pain[,] or mental suffering.” (*Carter*, supra, at 407.) “[T]he facts constituting the neglect and establishing the causal link between the neglect and the injury must be pleaded with particularity, in accordance with the pleading rules governing statutory claims.” (*Ibid.*, internal quotation omitted.)

For

the first element, the Amended Complaint alleges that SGH assumed custodial care with Divine Manor for Lance Albayati and was responsible for providing him with medical care. (See AC, ¶¶ 4, 19, 108–109, 112.) SGH does not contest that it provided medical care to Lance Albayati, only that the extent of its medical care did not rise to the level of a caretaking or custodial relationship. (See Dem., p. 4, stating, “A robust caretaking or custodial relationship entails more than limited interactions.”)

At

the demurrer stage, the court cannot determine whether the medical care SGH provided to Lance Albayati was significant enough to find that it assumed a caretaking relationship with him; at the demurrer stage, the court only assumes the truth of the allegations of the pleading.

(See Fox, *supra*, 185 Cal.App.4th at 1078, stating that the court assumes the truth of the allegations in the complaint; see also Kruss, *supra*, 185 Cal.App.4th at 727, stating that the court draws reasonable inferences in favor of the complaint.)

Since the court cannot conclude on the face of the Amended Complaint or through judicially noticed material that SGH did not have a caretaking relationship with Lance Albayati based on the medical care provided, the court finds that the Albayatis allege sufficient facts for the first element. (See Donabedian, *supra*, 116 Cal.App.4th at 994, stating that to sustain a demurrer, the defect must appear on the face of the complaint or by judicial notice.) For the fourth element, the Albayatis allege that the administration of excessive sedatives physically restrained Lance Albayati, putting him at a higher risk of aspiration, and contributing to his death. (See AC, ¶¶ 4, 81, 108, 110, 116–117, 126, 139.)

For the second element, however, the Albayatis only allege that SGH's doctor conducted an examination of Lance Albayati when he was admitted, SGH's licensed vocational nurse observed his condition, and the Albayatis contacted SGH to cease administering sedatives. (See AC, ¶¶ 62, 66–67, 75, 77–78, 81.) There are no allegations that SGH knew that Lance Albayati was unable to provide for his own basic needs. Furthermore, for the third element, there are no allegations that SGH specifically failed to assist in Lance Albayati's personal hygiene, failed to provide food or clothing, failed to provide medical care, failed to protect from health and safety hazards, or failed to prevent malnutrition or dehydration. (See Welf. & Inst. Code, § 15610.57, subd. (b)(1)–(b)(4).) Thus, the court finds Amended Complaint fails to state sufficient facts for each element of elder abuse by neglect as to SGH.

Therefore,

the demurrer to the first cause of action is SUSTAINED WITH LEAVE TO AMEND.

Second

Cause of Action: Wrongful Death/Negligence and Third Cause of Action: Survival/Negligence

SGH

argues that the Amended Complaint fails to allege sufficient facts to support a cause of action for negligence. The court agrees. Since both the second and third causes of action are based in negligence, the court considers them together.

To

state a claim for negligence, a plaintiff must allege (1) the existence of a legal duty of care, (2) breach of that duty, and (3) proximate cause resulting in an injury. (McIntyre v.

Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671.) “The elements of a cause of action for wrongful death are a tort, such as negligence, and resulting death.” (Lopez v. City of Los Angeles. (2011) 196 Cal.App.4th 675, 685.) “A cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent’s successor in interest, . . . and an action may be commenced by the decedent’s personal representative or . . . by the decedent’s successor in interest.” (Code Civ. Proc., § 377.30.)

For

the first element, the Amended Complaint alleges that SGH owed a duty to Lance Albayati as his caretakers. (See AC, ¶¶ 123, 137, alleging, “By virtue of their roles as caretakers and by virtue of the fact that Lance [Albayati] was a dependent adult residing at [Divine Manor], Defendants had a duty to exercise a degree of care that a reasonable person in a like position would exercise.”) The Albayatis also include a list of federal and state laws and regulations that purportedly demonstrate the duty SGH owed.

(See AC, ¶¶ 129, 138.)

However, as the Amended Complaint explicitly concedes, the cited laws and regulations “govern[] nursing homes.”

(AC, ¶¶ 129, 138.) The Albayatis allege

that SGH is a “hospice care facility,” not a nursing home. (AC, ¶ 19, capitalization changed.) In other words, the Amended Complaint does

not allege that SGH owed Lance Albayati a duty as a nursing home under the cited authorities. For the second and

third elements, if SGH did not owe Lance Albayati a duty, then it could not

have breached its duty, and the breach cannot have resulted in injury. Thus, the court finds the Amended Complaint fails to state sufficient facts for each element of negligence as to SGH.

Therefore,
the demurrer to the second and third causes of action are SUSTAINED WITH
LEAVE TO AMEND.

MOTION
TO STRIKE

SGH moves to strike the references to, and requests
for, heightened remedies and attorney's fees.
Since the court grants leave to amend the Amended Complaint, the motion
to strike is deemed MOOT.

CONCLUSION

For
these reasons, the demurrer to amended complaint is SUSTAINED WITH TWENTY
(20) DAYS LEAVE TO AMEND.

The
motion to strike portions of amended complaint is deemed MOOT.